

Unsafe Building Hearing September 11th 2025

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=Paf2HRw1MhU
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Unsafe Building Hearing Authority <U+2014> Meeting Summary

Meeting Date: September 11, 2025

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The meeting of the Unsafe Building Hearing Authority was called to order on September 11, 2025, by presiding officer Gretchen Cheeseman.
- **Attendance:**
 - **Members Present:** Gretchen Cheeseman, Mayor Dan Ragnau, James Heinlick, and Jeff Green.
 - **City Staff Present:** Taylor Reed, Caressa Sanders, Danny Han, Richard Rawlings (Administrators), Alan Wisley (City Attorney), and Courtney Walker (Recording Secretary).
 - **Presiding Officer:** Gretchen Cheeseman.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** Participants were asked to stand and were collectively sworn in by taking an oath regarding their testimony.
 - **Approval of Minutes:** *Not explicitly addressed in the provided transcript text.*
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4. Substantive Business & Board Action

- **00:03:09 Item 1: 1001 East 29th Street**
 - **Sponsor / Presenter:** Heather McKibben (Property representative).
 - **Deliberation Summary:** City staff noted multiple code violations including a structure full of debris, blocked egress, lack of clearance to electrical panels, potential environmental/oil contamination, and acting as an unpermitted salvage yard due to numerous inoperable vehicles and tires. McKibben stated they are selling cars, waiting on insurance for sign damage, and beginning clean-up efforts. Fire Department Lieutenant Andy Nickham reported 19 separate fire code violations.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to affirm the rehab order, order an inspection with the building commissioner and fire department, and continue for 30 days. **Passed Unanimously (Voice Vote).**
- **00:17:35 Item 5: 416 East Kirby Avenue**
 - **Sponsor / Presenter:** Gloria Williams.
 - **Deliberation Summary:** Discussed property with a brown porch, overgrowth, and an abandoned vehicle. Williams stated she is working with a title company to transfer ownership from her late mother's estate into her name to rehab the property for her son.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to affirm the rehab order and continue for 30 days to sort out the title. **Passed Unanimously (Voice Vote).**
- **00:20:44 Item 6: 4611 South Madison Street**
 - **Sponsor / Presenter:** Matthew Billington (Property owner).
 - **Deliberation Summary:** A 16-unit apartment complex. Owner reported plans to clear trash, landscape, file evictions on non-paying tenants, and replace storm-damaged roofing (receipts provided). Staff noted roof leaks, broken doors, water-damaged walls, and plumbing issues in unit 15.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to affirm the rehab order, continue for 30 days, and order an inspection prior to the next hearing. **Passed Unanimously (Voice Vote).**
- **00:25:13 Item 7: 4613 South Madison Street**

- **Sponsor / Presenter:** Matthew Billington (Property owner).
 - **Deliberation Summary:** Adjacent single-family vacant home. Owner noted three trailer loads of trash removed, yard mowed twice, and willingness to meet the inspector on site.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to affirm the rehab order, continue for 30 days, and require an inspection. **Passed Unanimously (Voice Vote).**
- **00:26:40 Item 9: 2234 West Memorial Drive**
 - **Sponsor / Presenter:** Chandon Shaha (Property owner) and Danielle Hudson (Tenant).
 - **Deliberation Summary:** Owner claimed most repairs (window, downspouts, toilet) are complete. Tenant Danielle Hudson testified regarding unaddressed maintenance issues (broken window from foundation shifting, water leaks, electrical hazards) and noted she had vacated and filed a civil suit against the landlord regarding lease conditions.
 - **Item-Specific Public Input:** Danielle Hudson (Tenant) testified about chronic maintenance neglect and safety concerns.
 - **Action & Vote Disposition:** Motion to affirm the rehab order, order a building commissioner inspection for all four units, and continue for 30 days. **Passed Unanimously (Voice Vote).**
- **00:43:30 Item 10: 2204 South Vine Street**
 - **Sponsor / Presenter:** Alicia Saunders (Property manager representing Wilson Acquisitions/Middletown).
 - **Deliberation Summary:** Addressed water leaking into the garage. A metal roofing contractor (Frank's Maintenance Repair) is scheduled for the following week, after which interior garage repairs will proceed.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to affirm the rehab order, continue for 30 days, and order an inspection prior to the next hearing. **Passed Unanimously (Voice Vote).**
- **00:48:40 Item 13: 2017 North Glenwood Avenue**
 - **Sponsor / Presenter:** Alicia Saunders (Property manager representing Wilson Acquisitions).
 - **Deliberation Summary:** Addressed exterior rotted wood, leaking chimney, sagging living room ceiling, and plumbing leaks. Property manager stated ceiling and chimney repairs are complete, with remaining repairs scheduled.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to affirm the demolition order (retained as demo for now, pending work), continue for 60 days, and require an inspection prior to the next hearing. **Passed Unanimously (Voice Vote).**
- **00:48:40 Item 15: 524 West Main Street**

- **Sponsor / Presenter:** Jane Terrell (Representing Danielle Williams).
 - **Deliberation Summary:** Vacant property with severe deterioration. Representative stated the tenant is moving out by October 4th and the family is attempting to sell the property to a buyer who buys in any condition.
 - **Item-Specific Public Input:** Jane Terrell spoke regarding the family's timeline to clear out and sell.
 - **Action & Vote Disposition:** Motion to affirm the demolition order and continue for 30 days. **Passed Unanimously (Voice Vote).**
- **00:56:21 Item 21: 426-428 West Howard Street**
 - **Sponsor / Presenter:** Tier Wyinners (Property owner).
 - **Deliberation Summary:** Owner reported tearing down and rebuilding a problematic back porch area and framing a front walkway. Board discussed failure to obtain a previously ordered inspection and issues regarding dumpster placement and lack of workers.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to issue a \$250 fine for failing to obtain an inspection, order an inspection prior to the next hearing, and continue for 30 days. **Passed 3-1 (Voice Vote).**
- **00:58:21 Item 23: 418 West Jackson Street**
 - **Sponsor / Presenter:** Aaron Majravic (Representing Southwest Units LLC).
 - **Deliberation Summary:** Owner apologized for missing the prior hearing due to a family emergency and stated outside and inside work (except electrical conduit) is complete. An inspection is scheduled for the following Tuesday.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion for a 30-day extension. **Passed Unanimously (Voice Vote).**
- **01:09:05 Item 27: 1723 South Madison Street**
 - **Sponsor / Presenter:** Lisa Brown (Representing Prudent Homes).
 - **Deliberation Summary:** Progress is ongoing but slow; wrapping exposed wood in the rear and clearing out apartment C.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to continue for 60 days to November 13th. **Passed Unanimously (Voice Vote).**
- **01:11:20 Item 28: 6009 West Memorial Drive**
 - **Sponsor / Presenter:** Alicia Saunders (Property manager).
 - **Deliberation Summary:** Staff noted a final inspection was conducted on August 22nd and passed.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to release the rehab order. **Passed Unanimously (Voice Vote).**
- **01:13:03 Item 31: 3206 South Vine Street**

- **Sponsor / Presenter:** Shannon Faulenstein.
 - **Deliberation Summary:** Property was transferred to the speaker following the previous owner's passing (county records confirmed transfer on August 13th). Speaker is legally disabled, currently homeless, and seeking financial assistance (e.g., Habitat for Humanity) to fix a leaky roof before tackling interior cleanup.
 - **Item-Specific Public Input:** Shannon Faulenstein spoke regarding ownership transfer and struggles to secure roof repair funding.
 - **Action & Vote Disposition:** Motion to continue for 60 days and order an inspection prior to the next hearing. **Passed Unanimously (Voice Vote).**
- **01:18:20 Item 32: North Walddemar Avenue**
 - **Sponsor / Presenter:** Clarissa Miller.
 - **Deliberation Summary:** Speaker reported metal roofing on the garage is nearly complete, tires are removed, and yard waste is staged in a trailer. An inspection is scheduled for Monday or Tuesday.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to continue for 30 days with an inspection; if passed, no need to return. **Passed Unanimously (Voice Vote).**
- **01:20:54 Item 36: 1308 North Wheeling Avenue**
 - **Sponsor / Presenter:** Justin Harden (Representing Lehood Meats).
 - **Deliberation Summary:** Owner apologized for missing the prior hearing due to a family emergency and requested a reduction of the \$5,000 fine, calling it excessive. Discussed logistical challenges of operating a high-volume food business while planning a relocation. Structural floor braces adjusted and plumbing leaks resolved.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to continue for 30 days, rescind the \$5,000 civil penalty, assess a \$150 fine for failing to obtain a progress inspection, and allow release if inspection passes. **Passed Unanimously (Voice Vote).**
- **01:26:43 Item 38: 409 West 8th Street**
 - **Sponsor / Presenter:** Eric [Last Name Unclear].
 - **Deliberation Summary:** Owner recently acquired the property, replaced a window, and plans to install a patio door and fix the fascia. Staff noted an inspection ordered previously did not occur.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to assess a \$150 fine for failing to obtain an inspection, order an inspection prior to the next hearing, and continue for 30 days. **Passed Unanimously (Voice Vote).**
- **01:31:13 Item 39: 523 West 8th Street**
 - **Sponsor / Presenter:** Alicia Saunders (Property manager representing Middletown).
 - **Deliberation Summary:** Addressed garage structure. Manager noted confusion regarding conflicting advice on whether to tear down or rehab the garage.
 - **Item-Specific Public Input:** None.

- **Action & Vote Disposition:** Motion to continue for 60 days with an inspection ordered prior to the hearing; if passed, no return required. **Passed Unanimously (Voice Vote).**
- **01:33:47 Item 45: 913 South Hoy Avenue**
 - **Sponsor / Presenter:** Troy Enskeep.
 - **Deliberation Summary:** Owner stated he has a potential buyer who plans to box in windows with concrete block or siding rather than boards, and repair structural corner cracking. Staff requested modifying the order from demolition to rehab.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to modify the demolition order to a rehab order, continue for 60 days, and order an inspection prior to the next hearing. **Passed Unanimously (Voice Vote).**
- **01:52:34 Item 35: 1132 North Warwick Road**
 - **Sponsor / Presenter:** Thomas Boyd.
 - **Deliberation Summary:** Owner stated he is still seeking funding to move forward with rehab. Board members noted persistent outdoor clutter and junk remaining through the summer.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to continue for 30 days and order a property cleanup by MSD. **Passed Unanimously (Voice Vote).**
- **01:44:37 Southway Plaza (3705 / 3837 / 3845 South Madison Street)**
 - **Sponsor / Presenter:** Steve Smith (Business tenant - mattress store).
 - **Deliberation Summary:** Tenant expressed frustration over lack of communication from landlords (Middletown Property Group/Topstar/Dove Realty), loss of other tenants (Dollar General), deteriorating conditions, and lack of air conditioning, while noting uncertainty about the plaza's future. Board and staff expressed high frustration with absentee ownership, noting failed attempts to get buyers to remediate the nuisance property.
 - **Item-Specific Public Input:** Steve Smith (Business tenant) spoke regarding operating a business in the neglected plaza without landlord communication or operational utilities.
 - **Action & Vote Disposition:** Motion to affirm demo and trash orders, impose a \$5,000 civil penalty for non-compliance, and set a return hearing for October 9th. **Passed Unanimously (Voice Vote).**
- **01:40:29 Bulk Docket Approval (Items 2-4, 11, 12, 16, 18-20, 22, 24-26, 29, 30, 33, 34, 37, 40-44, and 46-54)**
 - **Sponsor / Presenter:** Board Member / Staff.
 - **Deliberation Summary:** The presiding officer noted that no one appeared at the hearing on behalf of the owners of record for these docketed properties after due notice.
 - **Item-Specific Public Input:** None.

- **Action & Vote Disposition:** Motion to adopt the building commissioner's reports as findings and adopt staff's recommended orders for each listed property. **Passed Unanimously (Voice Vote).**
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5. Open Public Comment / Citizen Forum

Note: Public comments regarding specific agenda items were integrated into Section 4 above during the discussion of those properties. No separate, general open public comment period occurred outside of property-specific hearings.

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:** Reference made to upcoming hearings, including October 9th.
 - **Adjournment:** Motion to adjourn was made, seconded, and **Approved by Voice Vote** at the conclusion of the docket.
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